Privacy Policy

Privacy Policy

Welcome to Content Arcade, the provider of the Logo Maker website and application ("Logo Maker," "we," or "us"). This page explains the terms by which you may use our website, application software and service through your browser or mobile device (collectively our "App"). By downloading, accessing or using the App, you signify that you have read, understood, and agree to be bound by this Terms of Use Agreement ("Agreement") and to the collection and use of your information as set forth in the Logo Maker app Privacy Policy. Logo Maker reserves the right to make unilateral modifications to these terms. This Agreement applies to all visitors, users, and others who download, access or use the App ("Users").

PLEASE READ THIS AGREEMENT CAREFULLY TO ENSURE THAT YOU UNDERSTAND EACH PROVISION. THIS AGREEMENT CONTAINS A MANDATORY ARBITRATION OF D ND LOGO MAKER APP WILL BE RESOLVED BY BINDING, INDIVID CLASS ACTION LAWSUIT OR CLASS-WID

1. Use of

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A. Eligibility

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B. Logo Ma

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C. Logo Maker Accounts

Your Logo Maker account gives y tain from time to time and in our sole discretion. By connecting to Logo Maker with a third-party service, you give us permission to access and use your information from that service as permitted by that service, and to store your log-in credentials for that service. You may never use another User's account without permission. When creating your account, you must provide accurate and complete information. You are solely responsible for the activity that occurs on your account, and you must keep your account password secure. We encourage you to use "strong" passwords (passwords that use a combination of upper and lower case letters, numbers and symbols) with your account. You must notify Logo Maker immediately of any breach of security or unauthorized use of your account. Logo Maker will not be liable for any losses caused by any unauthorized use of your account. You may control your User profile and how you interact with the App by changing the settings in the mobile app. By providing Logo Maker your email address you consent to our using the email address to send you App-related notices, including any notices required by law, in lieu of communication by postal mail. We may also use your email address to send you other messages, such as changes to features of the App and special offers.

D. Usage Rules

You agree not to engage in any of the following prohibited activities: (i) copying, distributing, or disclosing any part of the App in any medium, including without limitation by any automated or non-automated "scraping"; (ii) using any automated system, including without limitation "robots," "spiders," "offline readers," etc., to access the App in a manner that sends more request messages to the Logo Maker servers than a human can reasonably produce in the same period of time by using a conventional on-line web browser; (iii) transmitting spam, chain letters, or other unsolicited email; (iv) attempting to interfere with, compromise the system integrity or security or decipher any transmissions to or from the servers running the App; (v) taking any action that imposes, or may impose at our sole discretion an unreasonable or disproportionately large load on our infrastructure; (vi) uploading invalid data, viruses, worms, or other software agents through the App; (vii) collecting or harvesting any personally identifiable information, including account names, from the App; (viii) using the App for any commercial purposes without having all necessary rights and licenses to the User Content; (ix) impersonating another

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person or otherwise misrepresenting your affiliation with a person or entity, conducting fraud, hiding or attempting to hide your identity; (x) interfering with the proper working of the App; (xi) accessing any content on the App through any technology or means other than those capabilities provided by the App; or (xii) bypassing the measures we may use to prevent or restrict access to the App, including without limitation features that prevent or restrict use or copying of any content or enforce limitations on use of the App or the content therein. We may, without prior notice, change the App, stop providing the App or features of the App, to you or to Users generally, or create usage limits for the App. We may permanently or temporarily terminate or suspend your access to the App, or delete any User Content (as defined below), without notice and liability for any reason, including if in our sole determination you violate any provision of this Agreement, or for no reason. Upon termination for any reason or no reason, you continue to be bound by this Agreement. You are solely responsible for your conduct and any data, text, files, information, images, photos, audio and video clips, sound recordings, musical works, narration, works of authorship, links and other content or materials that you submit, post or display on or via our App. Logo Maker shall have no liability for conduct in relation to your use of our App.

2. User Content

Some areas of the App provide Users the capability to create, share and post content such as profile information, videos, images, musical works, sound recording, text and other material used to create a Logo Maker Logos, comments, questions, and other material or information (any such materials a User provides, shares, submits, displays, or otherwise creates using the App, including the Logo Maker Logos created by the User, are "User Content"). We claim no ownership rights over User Content created by you. Logo Maker has the right (but not the obligation) in its sole discretion to remove any User Content that is stored via the App.

You agree not to post, store, transmit, create or share any User Content that: (i) may create a risk of harm, loss, physical or mental injury, emotional distress, death, disability, disfigurement, or physical or mental illness to you, to any other person, or to any animal; (ii) may create a risk of any other loss or [illegible] by exposing them to inappropriate content, asking for [illegible] tribute to a crime or tort; (v) contains an[illegible] y, infringing, i[illegible] us, threatening [illegible] tation, the disclosure [illegible] content that you do [illegible] y User Content tha[illegible] any Intellectual [illegible] t and/or remove any [illegible]

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B. To the ex[illegible] hat is not your orig[illegible] permissions necessary in orde[illegible] or dissemination of that User Content using the App.
C. Logo Maker may exercise the rights to your User Content granted under this Agreement without liability for payment of any guild fees, residuals, payments, fees, or royalties payable under any collective bargaining agreement or otherwise. Logo Maker takes no responsibility and assumes no liability for any User Content that you or any other User or third party creates, stores, shares, posts or sends through the App. You shall be solely responsible for your User Content and the consequences of posting, publishing it, or sharing it and you agree that we are only acting as a passive conduit for your online distribution and publication of your User Content. If your Content violates these Terms of Use, you may bear legal responsibility for that content.

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3. User Content License Grant

If you share your User Content with Logo Maker or link your User Content to Logo Maker on a third party service (including, for example, by using the tag #LOGOMAKER on Instagram or tagging LOGOMAKER on Facebook), you expressly grant, and you represent and warrant that you have all rights necessary to grant, to Logo Maker a royalty-free, sub licensable, transferable, perpetual, irrevocable, non-exclusive, worldwide license to use, reproduce, modify, publish, list information regarding, edit, translate, distribute, syndicate, publicly perform, publicly display, and make derivative works of all such User Content and your name, voice, and/or likeness as contained in your User Content, in whole or in part, and in any form, media or technology, whether now known or hereafter developed, for use in connection with the App and Logo Maker's (and its successors' and affiliates') business, including without limitation for promoting and redistributing part or all of our App (and derivative works thereof) in any media formats and through any media channels.

4. Logo Maker

A. About

The App provides you the ability to create personal video stories by sequencing your video clips, and if you choose, to accompany them with your music, or other sounds. The App may also provide the capability for third parties to offer you music or audio clips to use in your creation of User Content. You continue to own all of your original User Content in any Logo Maker Logos created by you. However, you do not own any music, audio clips, video, or other content provided by third parties via the App, including any such content that you include in a Logo Maker Logos, and you may only use such content for private noncommercial purposes and to the extent of the functionality of the App.

B. Sharing Logo Maker Logos and User Content.
You can share your Logo Maker Logos and other User Content with others via email, SMS text messages, or third-party services such as Instagram, Facebook, YouTube, and Twitter. Logo Maker has no control over third-party sites and services. If you choose to share your Logo Maker Logos on a third-party ite or service, you do so at your own risk, and you understand that this Agreement and Logo Maker's Privacy Policy do not apply to your use of such sites. You are solely responsible for your Logo Maker Logos and any sharing of the videos by you or through your account. You are responsible for ensuring that you have all Intellectual Property Rights for any User Content that you create via the Logo Maker App for commercial use. You agree that Logo Maker shall not be liable for any violation of any laws or rights of third parties, including without limitation Intellectual Property Rights, rights of privacy, and rights of publicity, arising from or related to your creation or use of any User Content, and you agree to defend, indemnify, and hold harmless Logo Maker from any and all liability arising from your access to or creation, use, or sharing of any User Content.

5. Mobile Software

A. Mobile Software
We may make available software to access the App via a mobile device ("Mobile Software"). To use the Mobile Software, you must have a mobile device that is compatib ile Software will be compatible with your mobile device. Logo Ma nse to use a compiled code copy of the nal use. You may no iction is expressly p third party or use the M Software; (iv) remove s that prevent or r on use of the Mobile e that Logo Maker may the version of the Mobi evice, and agree that t porated in the Mobile . The foregoing li suppliers retain all rig ts, duties or obligatio ssly granted unc or entities prohibited f other countries.

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7. Privacy

We care about the privacy of our Users. You understand that by using the App you consent to the collection, use and disclosure of your personally identifiable information and aggregate data as set forth in our Privacy Policy, and to have your personally identifiable information collected, used, transferred to and processed in Singapore.

8. Security

Logo Maker cares about the inte arantee that unauthorized third parties will never be able to defe purposes. You acknowledge that you pro

9. Third-P

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10. Indem

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11. No Warranty

THE APP IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS. USE OF THE APP IS AT YOUR OWN RISK. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE APP IS PROVIDED WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. NO ADVICE OR INFORMATION, WHETHER ORAL OR WRITTEN, OBTAINED BY YOU FROM LOGO MAKER OR THROUGH THE APP WILL CREATE ANY WARRANTY NOT EXPRESSLY STATED HEREIN. WITHOUT LIMITING THE FOREGOING, LOGO MAKER, ITS SUBSIDIARIES, ITS AFFILIATES, AND ITS LICENSORS DO NOT WARRANT THAT THE CONTENT IS ACCURATE, RELIABLE OR CORRECT; THAT THE APP WILL MEET YOUR REQUIREMENTS; THAT THE APP WILL BE AVAILABLE AT ANY PARTICULAR TIME OR LOCATION, UNINTERRUPTED OR SECURE; THAT ANY DEFECTS OR ERRORS WILL BE CORRECTED; OR THAT THE APP IS FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS. ANY CONTENT DOWNLOADED OR OTHERWISE OBTAINED THROUGH THE USE OF THE APP IS DOWNLOADED AT YOUR OWN RISK AND YOU WILL BE SOLELY RESPONSIBLE FOR ANY DAMAGE TO YOUR COMPUTER SYSTEM OR MOBILE DEVICE OR LOSS OF DATA THAT RESULTS FROM SUCH DOWNLOAD OR YOUR USE OF THE APP.

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B. Arbitration

READ THIS SECTION CAREFULLY BECAUSE IT REQUIRES THE PARTIES TO ARBITRATE THEIR DISPUTES AND LIMITS THE MANNER IN WHICH YOU CAN SEEK RELIEF FROM LOGO MAKER. Any dispute arising from or relating to the subject matter of this Agreement shall be finally settled by arbitration in UK, using the English language in accordance with the Arbitration Rules and Procedures of Judicial Arbitration and Mediation Services, Inc. ("JAMS") then in effect, by one commercial arbitrator with substantial experience in resolving intellectual property and commercial contract disputes, who shall be selected from the appropriate list of JAMS arbitrators in accordance with the Arbitration Rules and Procedures of JAMS. The prevailing party in any arbitration or other proceeding arising under this Agreement shall be entitled to receive reimbursement of its reasonable expenses (including reasonable attorneys' fees, expert witness fees and all other expenses) incurred in connection therewith. Judgement up on the award so rendered may be entered in a court having jurisdiction or application may be made to such court for judicial acceptance of any award and an order of enforcement, as the case may be. Notwithstanding the foregoing, each party shall have the right to institute an action in a court of proper jurisdiction for injunctive or other equitable relief pending a final decision by the arbitrator. For all purposes of this Agreement, the parities connect to exclusive jurisdiction and venue in the courts located in Singapore. Use of the site is not authorised in any jurisdiction that does not give effect to all provisions of the Agreement, including without limitation, this section. You and Logo Maker agree that any cause of action arising out of or related to the App (including, but not limit to, any services provided or made available therein) or this Agreement must commence within (1) year after the cause of action arose; otherwise, such cause of action is permanently barred. Should you have a dispute with one or more users, or an outside party, you release Logo Maker (and Logo Maker's officers, directors, agents, subsidiaries, joint ventures, creators and employees) from any and all claims, demands and damages (actual and consequential) of every kind and nature, known and unknown, suspected and unsuspected, disclosed and undisclosed, arising out of or in any way connected with such disputes. Logo Maker encourages users to report user-to-user disputes to your local law enforcement, postmaster general, or a certified

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mediation or arbitration entity, as applicable. Logo Maker, for the benefit of users, may try to help users resolve disputes. Logo Maker does so in LOGOMAKER's sole discretion, and Logo Maker has no obligation to resolve disputes between users or between users and outside parties. To the extent that Logo Maker attempts to resolve a dispute, Logo Maker will do so in good faith based solely on LOGOMAKER's policies. Logo Maker will not make judgements regarding legal issues or claims.

C. Class Action/Jury Trial Waiver
Content Arcade is dedicated to protecting the security of your Information REGARDLESS OF WHETHER YOU HAVE OBTAINED OR USED THE APP FOR PERSONAL, COMMERCIAL OR OTHER PURPOSES, YOU AGREE THAT ALL DISPUTES BETWEEN YOU AND LOGO MAKER WILL BE RESOLVED BY BINDING, INDIVIDUAL ARBITRATION AND THAT YOU AND LOGO MAKER WAIVE HEREBY EXPRESSLY WAIVE TRIAL BY JURY. YOU MAY BRING CLAIMS ONLY ON YOUR OWN BEHALF. NEITHER YOU NOR TLOGO MAKER WILL PARTICIPATE IN A CLASS ACTION OR CLASS-WIDE ARBITRATION FOR ANY CLAIMS COVERED BY THIS AGREEMENT. YOU ALSO AGREE NOT TO PARTICIPATE IN CLAIMS BROUGHT BY A PRIVATE ATTORNEY GENERAL OR IN A REPRESENTATIVE CAPACITY, OR CONSOLIDATED CLAIMS INVOLVING ANOTHER PERSON'S ACCOUNT.

14. General

A. Assignment
This Agreement, and any rights and licenses granted hereunder, may not be transferred or assigned by you, but may be assigned by Logo Maker without restriction. Any attempted transfer or assignment in violation hereof shall be null and void.

What would happen if Content Arcade closes my account?
In the event that Content Arcade closes your account due to your violation of the Terms of Service, then you may contact us if you want to request deletion of your data. [illegible] gations.

B. Notificat
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D. No Waiv
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LOGOMAKER's failure to assert a[illegible] of such right or provision.

E. Contact
Please contact us support@logomaker.net with any questions regarding this Agreement. This Agreement was last modified on 09/19/18.

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1. INFORMATION WE COLLECT
Generally. We collect personal information from our users in order to provide you with a personalized, useful and efficient experience. The categories of information we collect can include:

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take part in any interactive features of the App (e.g., games, contests, promotions, surveys, etc.). User Content. We collect your personal information contained in any User Content you create, share, store or submit to the App, which may include video or other image files, music works, sound recording, narration, written forum comments, information, data, text, scripts, graphics and interactive features generated, provided or otherwise made accessible by Logo Maker. Information we receive from social networking sites. When you interact with our site through various social media, such as when you login and share through Facebook, Instagram and others, we may receive information from the social network including your profile information, profile picture, gender, user name, user ID associated with your social media account, age range, language, country, friends list, and any other information you permit the social network to share with third parties. The data we receive is dependent upon your privacy settings with the social network. You should always review, and if necessary, adjust your privacy settings on third-party websites and services before linking or connecting them to our website or Service. Information about others. With your permission, Logo Maker may access your contact list available on your mobile device in order to share your Logo Maker creations, or to invite your friends and contacts to connect with our Service. We may also collect information about others if you use our Service to upload, share and/or distribute User Content that contains information about others, including their name, image and online contact information. Metadata. Logo Maker collects metadata associated with User Content. Metadata typically consists of how, when, where and by whom a piece of User Content was collected and how that content has been formatted. Users can add or may have added metadata added to their User Content including keywords posted with a photo or video, including names, geographical information, comments or other data. This makes your data more searchable and more interactive. However, the metadata may be accessible to others if you share the User Content with others or on third party social media sites.

We use this information to operate, maintain, and provide to you the features and functionality of the App, as well as to communicate directly with you, such as to send you email messages and push notifications, and permit you to share your creations on the App with your contacts or social media sites. We may also send you Service-related emails or messages (e.g., account verification, order confirmations, change or updates mation about your communication preferences, see

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Learn more why you are seeing this

To offer you free, high-quality content and deliver the best possible user experience on our website, we and our **technology partners** (1537) require your consent to store and access personal data on your device. This includes using cookies, unique identifiers and information about your browse activity to show you relevant ads. This may include the following:

- **Store and/or access information on a device**
- **Personalised advertising and content, advertising and content measurement, audience research and services development**
- **Use precise geolocation data**
- **Actively scan device characteristics for identification**

You may consent to the processing described above or access more detailed information and customise your choices. The given consent will apply to this site only. Please take into consideration that some of your personal data processing may rely on legitimate interest which does not require your consent, but you have a right to object to this.

You can change or withdraw your consent anytime via our footer link or privacy policy page.

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We use or may use the data collected through cookies, log file, device identifiers, location data and clear gifs information to: (a) remember information so that you will not have to re-enter it during your visit or the next time you visit the site; (b) provide custom, personalized content and information, including advertising; (c) provide and monitor the effectiveness of our Service; (d) monitor aggregate metrics such as total number of visitors, traffic, usage, and demographic patterns on our website and our Service; (e) diagnose or fix technology problems; and (f) otherwise to plan for and enhance our service.

2. SHARING PERSONAL INFORMATION WITH THIRD PARTIES

We may share your personal information in the instances described below. For further information on your choices regarding your information, see the "Your Choices Regarding Your Information" section below.

We may also share your personal information with:

Other companies owned by or under common ownership as Logo Maker, which also includes our subsidiaries (i.e., any organization we own or control) or our ultimate holding company (i.e., any organization that owns or controls us) and any subsidiaries it owns. These companies will use your personal information in the same way as we can under this Policy;

Third party vendors, consultants and other service providers that perform services on our behalf, in order to carry out their work for us, which may include identifying and serving targeted advertisements, content or service fulfillment, or providing analytics services; Our business partners who offer a service to you jointly with us, for example, when running a co-sponsored contest or promotion;

Third parties who we think may offer you products or services you may enjoy;

Third parties at your request. For example, you may have the option to share your Logo Maker Logos with your friends through email, SMS text, or various social media sites;

The public at your request. If you interact with our site or app on social media, for example by tagging your videos #LOGOMAKER on Instagram, that piece of User Content will be linked to Logo Maker on our website or social media profiles and Logo Maker may display your User Content publicly;

Other parties in connection with any company transaction, such as a merger, sale of company assets or shares, reorganization, financing, change of control or acquisition of all or a portion of our business by another company or third party or in the event of bankruptcy or related or similar proceedings; and Third parties as required to (i) satisfy any applicable law, regulation, subpoena/court order, legal process or other government request, (ii) enforce our Terms of Use Agreement, including the investigation of potential violations thereof, (iii) investigate and defend ourselves against any third party claims or allegations, (iv) protect against harm to the rights, property or safety of Logo Maker, its users or the public as required or permitted by law and (v) detect, prevent or otherwise address criminal (including fraud or stalking), security or technical issues.

We may also share information with others in an aggregated and anonymous form that does not reasonably identify you directly as an individual.

3. YOUR CHOICES REGARDING YOUR INFORMATION

Marketing Communications. If you do not wish to receive promotional emails, you can click the "unsubscribe" button on promotional email communications. Note that you are not permitted to unsubscribe or opt-out of non-promotional messages regarding your account, such as account verifica ange or updates to features of the App, or technical and security

Online Adve e over time so that they ypically, the information e collection of any infor device. Please refe and other tracking/re sit http://www. g.org). Depending

Data Retent lowing termination reasonable time for bac unt. Please be a

4. SECURI

Logo Make nnological safeguards owever, no security sys under our control is c re appropriate, notify those individu eps, in accordance with any applicable laws and regulations. sed in Singapore or any other country in which Logo Maker or its subsidiaries, affiliates or service providers maintain facilities. If you are located in the European Union or other regions with laws governing data collection and use that may differ from UK law, please note that we may transfer information, including personal information, to a country and jurisdiction that does not have the same data protection laws as your jurisdiction, and you consent to the transfer of information to UK or any other country in which Company or its parent, subsidiaries, affiliates or service providers maintain facilities and the use and disclosure of information about you as described in this Privacy Policy.

5. PERSONS UNDER THE AGE OF 13

Logo Maker does not knowingly collect or solicit any information from anyone under the age of 13 or knowingly allow such persons to register for the App. The App and its content are not directed at children under the age of 13. In the event that we learn that we have collected personal information from a child under age 13 without parental consent, we will delete that information as quickly as possible. If you believe that we might have any information collected from a child under 13, please contact us at support@logomaker.net

6. LINKS TO THIRD PARTY WEBSITES

The Apps may contain links to and from third party websites of our business partners, advertisers, and social media sites. If you follow a link to any of these websites, please note that these websites have their own privacy policies and that we do not accept any responsibility or liability for their policies. Please check the individual policies before you submit any information to those websites.

7. UPDATES TO THIS POLICY

We reserve the right to modify this Policy from time to time. If we make any changes to this Policy, we will change the "Last Revision" date below and will post the updated Policy on this page.

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8. CONTACTING US

438, Streatham High Road London, UK. SW16 3PX

If you have questions about this Policy, please contact us at support@logomaker.net

9. LAST REVISION DATE

This Policy was last revised on, and effective as of, Aug 21, 2019

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